

COURT OF APPEAL FOR ONTARIO

CITATION: R. v. Morris, 2021 ONCA 680

DATE: 20211008

DOCKET: C65766

Fairburn A.C.J.O., Doherty, Juriansz, Tulloch and Paciocco JJ.A.

BETWEEN

Her Majesty the Queen

Appellant

and

Kevin Morris

Respondent

Roger Shallow, for the appellant

Faisal Mirza and Gail D. Smith, for the respondent

Nana Yanful, Johnathan Shime and Roger Rowe, for the interveners Black Legal Action Centre and Canadian Association of Black Lawyers

Caitlyn E. Kasper and Douglas Varrette, for the intervener Aboriginal Legal Services

Nader R. Hasan and Geetha Philipupillai, for the intervener the David Asper Centre for Constitutional Rights

Emily Lam and Marianne Salih, for the intervener Criminal Lawyers' Association

Annamaria Enenajor, for the intervener Urban Alliance on Race Relations

Anil K. Kapoor and Victoria M. Cichalewska, for the intervener Canadian Civil Liberties Association

Taufiq Hashmani, for the intervener Canadian Muslim Lawyers Association

Saman Wickramasinghe and Zach Kerbel, for the interveners South Asian Legal Clinic of Ontario, Chinese and Southeast Asian Legal Clinic, and Colour of Poverty/Colour of Change

Heard: February 11, 2021 by video conference

On appeal from the sentence imposed on July 19, 2018 by Justice Shaun S. Nakatsuru of the Superior Court of Justice, with reasons reported at 2018 ONSC 5186, 422 C.R.R. (2d) 154.

By the Court:

INTRODUCTION

[1] It is beyond doubt that anti-Black racism, including both overt and systemic anti-Black racism, has been, and continues to be, a reality in Canadian society, and in particular in the Greater Toronto Area. That reality is reflected in many social institutions, most notably the criminal justice system. It is equally clear that anti-Black racism can have a profound and insidious impact on those who must endure it on a daily basis: see *R. v. Le*, 2019 SCC 34, [2019] 2 S.C.R. 692, at paras. 89-97; *R. v. Theriault*, 2021 ONCA 517, at para. 212, leave to appeal to S.C.C. requested, 39768 (July 19, 2021); *R. v. Parks* (1993), 15 O.R. (3d) 324 (C.A.), at p. 342, leave to appeal refused, [1993] S.C.C.A. No. 481; see also Ontario Human Rights Commission, *A Collective Impact: Interim report on the inquiry into racial profiling and racial discrimination of Black persons by the Toronto Police Service* (Toronto: Government of Ontario, 2018), at p. 19; Ontario Association of Children's Aid Societies, *One Vision One Voice: Changing the Child Welfare System for*

African Canadians (Toronto: Ontario Association of Children's Aid Societies, 2016), at p. 29. Anti-Black racism must be acknowledged, confronted, mitigated and, ultimately, erased. This appeal requires the court to consider how trial judges should take evidence of anti-Black racism into account on sentencing.

OVERVIEW

[2] On June 28, 2017, a jury found the appellant, Kevin Morris, guilty of possession of a loaded prohibited/restricted handgun, contrary to s. 95 of the *Criminal Code*, R.S.C. 1985, c. C-46, carrying a concealed weapon, contrary to s. 90 of the *Criminal Code*, and two other related-gun charges under ss. 91 and 92 of the *Criminal Code*. The trial judge stayed the charge arising under s. 91 and entered convictions on the other charges. All of the charges arose out of Mr. Morris's possession of a loaded .38 calibre Smith & Wesson handgun. Except for the purposes of fixing the sentence on each charge, there is no need in these reasons to examine the charges separately.

[3] In July 2018, the trial judge sentenced Mr. Morris to 1 day in jail to be followed by 18 months probation.¹ In imposing sentence, the trial judge concluded the respondent should receive a sentence of 15 months plus probation for 18 months. Following deductions for breaches of the *Canadian Charter of Rights and*

¹ [Footnotes are omitted from this judgment]

Freedoms (3 months) and pretrial custody (243 days at a rate of 1.5:1), Mr. Morris was left with a net sentence of 1 day plus 18 months probation.

[4] The Crown seeks leave to appeal the sentence imposed. The Crown contends the sentence is manifestly unfit and the trial judge made several material errors in his reasons, particularly in his treatment of the evidence led by Mr. Morris concerning the impact of overt and institutional anti-Black racism. [...]

[5] Crown counsel acknowledges the reality of overt and institutional racism and its negative impact, particularly within the criminal justice system. Crown counsel accepts that the courts, and in particular trial judges, must frankly acknowledge that reality and take it into account within the sentencing scheme set out by Parliament.

[6] The Crown maintains, however, that the trial judge allowed his consideration of the impact of overt and institutional racism on Mr. Morris to overwhelm all other

considerations relevant to fashioning a fit sentence. The result, says the Crown, is a sentence that fails to reflect the seriousness of the offences and falls well below the range of appropriate sentences established in decisions from this court and the Supreme Court of Canada.

[7] The Crown submits a fit sentence is three years. The Crown accepts, however, in light of the passage of time and subsequent events, that the incarceration of Mr. Morris at this time would be inappropriate. The Crown asks the court to vary the sentence to three years and permanently stay the imposition of that sentence.

[8] Counsel for Mr. Morris submit the trial judge properly admitted, considered, and assessed the detailed and cogent evidence of longstanding overt and institutional systemic anti-Black racism and how that racism negatively affected Mr. Morris. Counsel do not equate the sentencing of Black offenders with the sentencing of Indigenous offenders. They do contend, however, that the use of social context evidence in fashioning the appropriate sentence, a requirement

when sentencing Indigenous offenders, should also play a prominent role in determining the appropriate sentence for Black offenders.

[...]

[10] Several parties intervened. By and large, they support the approach taken by the trial judge on sentencing. There are some differences in the positions taken by the interveners. Most notably, Aboriginal Legal Services takes the position that the detailed “*Gladue*” jurisprudence developed in reference to the application to Indigenous offenders of the restraint principle in s. 718.2(e) of the *Criminal Code*, cannot be applied to non-Indigenous offenders: see *R. v. Gladue*, [1999] 1 S.C.R.

[11] For the reasons set out below, we would allow the appeal and vary the sentence to one of two years, less a day, to be followed by probation on the terms imposed by the trial judge. We would permanently stay that sentence.

[12] This appeal raises important questions of general application in sentencing, as well as specific issues relating to this case. [...]

PRINCIPAL CONCLUSIONS

[13] For the reasons set out below, we come to the following conclusions:

- The trial judge's task in sentencing is to impose a just sentence tailored to the individual offender and the specific offence in accordance with the principles and objectives laid out in Part XXIII of the *Criminal Code*;
- Social context evidence relating to the offender's life experiences may be used where relevant to mitigate the offender's degree of responsibility for the offence and/or to assist in the blending of the principles and objectives of

sentencing to achieve a sentence which best serves the purposes of sentencing as described in s. 718;

- The gravity or seriousness of an offence is determined by its normative wrongfulness and the harm posed or caused by that conduct in the circumstances in which the conduct occurred. Accordingly, unlike when assessing the offender's degree of personal responsibility, an offender's experience with anti-Black racism does not impact on the seriousness or gravity of the offence;
- Courts may acquire relevant social context evidence through the proper application of judicial notice or as social context evidence describing the existence, causes and impact of anti-Black racism in Canadian society, and the specific effect of anti-Black racism on the offender;
- Consistent with the rules of admissibility, a generous gateway for the admission of objective and balanced social context evidence should be provided;
- The *Gladue* methodology does not apply to Black offenders. However, that jurisprudence can, in some respects, inform the

approach to be taken when assessing the impact of anti-Black racism on sentencing.

[...]

THE EVIDENCE ON SENTENCING

[33] Mr. Morris was almost 23 years old when he committed these offences. He was 26 at the time of sentencing.

[34] Mr. Morris did not have a criminal record at the time of sentencing. According to information provided by Mr. Morris, he had been charged with offences in the past, and on one occasion, spent “a couple of weeks” in a correctional facility for young offenders. It does not appear that Mr. Morris spent any appreciable time in custody on adult charges until he was arrested on the charges related to the home invasion in April 2017.

[35] Mr. Morris had been attacked and stabbed by an acquaintance in February 2013. It is not clear what motivated the stabbing. Mr. Morris suffered serious

internal injuries requiring surgery. Those injuries have resulted in ongoing medical problems which have interfered with Mr. Morris's ability to obtain employment, and caused him problems while incarcerated after April 2017. The stabbing has also had a negative effect on Mr. Morris's mental health.

[36] Mr. Morris's family doctor sent him for a psychiatric consultation in January 2014, about 10 months after Mr. Morris was stabbed and about 11 months before he committed these offences. The consultation report included the following:

Mr. Morris is a 22-year-old gentleman with a history of a traumatic event which included severe stab wounds approximately one year ago. The exact circumstances around this event are unknown as Mr. Morris mentioned that it was a robbery at the time. He does suffer from symptoms of post-traumatic stress disorder after this event, including flashbacks, nightmares, re-experiencing the event, and always feeling very hypervigilant and on edge. He feels extremely socially isolated as a result and essentially is nonfunctional. He is not working, unable to go to school, and stays home all day by himself.

[37] The psychiatrist recommended a medication regime and follow-up psychotherapy. Mr. Morris did not take the medication and did not return to the psychiatrist for psychotherapy.

[38] In a statement to the court at sentencing, Mr. Morris apologized to his mother and promised her he would change and make something out of his life.

The Social Context Evidence

[39] Counsel for Mr. Morris tendered two reports at sentencing. The first, entitled “Expert Report on Crime, Criminal Justice and the Experience of Black Canadians in Toronto, Ontario”, describes and analyzes the research that has been done on the existence, causes, and impact of anti-Black racism in Canadian society, especially in the Toronto area. The report provides an historical and social account of the Black experience in Canada. It draws a connection between the long history in Canada of overtly racist attitudes and social practices and present day institutional and systemic discrimination against Black people. The report explains how systemic discrimination in many social institutions marginalizes Black people in communities marked by poverty, diminished economic and employment opportunities, and a strong and aggressive police presence. These factors combine to leave many in the Black community with the reasonable perception that Canadian society, and in particular the criminal justice system, is racist and unfair.

[40] The authors conclude:

It is our opinion that the social circumstances of Black Canadians in general, and of Black male Torontonians in particular, should be viewed as criminogenic. Elevated levels of offending in the types of crimes that typically come to the attention of the police (street crimes as opposed to white-collar and corporate crimes), combined with discrimination in the justice system itself have resulted in the gross over-representation of Black Canadians in our provincial and federal correctional systems. Whereas no one individual should be

completely absolved of their own responsibility when it comes to offending behaviour, the social realities that have produced or contributed to such behaviour can be acknowledged, and serve to guide judicial decision making.

[...]

[43] The report bears reading and re-reading by those called upon to prosecute, defend, and sentence Black offenders, particularly young Black offenders. The

report is easily accessible as the trial judge helpfully attached a copy as an appendix to his reasons for sentence.

[44] The second report, a “Social History of Kevin Morris” (the “Sibblis Report”), was prepared by Camisha Sibblis, a clinical social worker and PhD candidate with a research focus on education and social work. Ms. Sibblis, who also co-authored the first report, has had extensive clinical experience, much of it involving assessments of young persons, often Black youth, for various social agencies. In addition, Ms. Sibblis conducts anti-Black racism workshops aimed at educating participants on the manner in which systemic anti-Black racism impacts on Black youth in various contexts, including in the educational system.

[45] Ms. Sibblis was asked to review Mr. Morris’s social history and trajectory with a view to providing an analysis of the impact of systemic racism on his experiences in and out of the justice system. As we understand the Sibblis Report, it is intended to bring the more general social context information provided in the first report home to the specific circumstances of Mr. Morris’s life experiences. In effect, the Sibblis Report sought to demonstrate how the negative consequences of anti-Black racism, identified and described in the first report, were very much a reality for Mr. Morris.

[46] The Sibblis Report provides a biography of Mr. Morris and his mother, Esta Reid. Ms. Reid arrived in Canada from Jamaica in 1978. Mr. Morris was born in

January 1992. Although Mr. Morris's father did not live with Mr. Morris and his mother, Mr. Morris saw him regularly and had a close relationship with him. Unfortunately, his father died when Mr. Morris was seven years old. Ms. Reid had to assume all the parental obligations, while at the same time becoming the sole provider for the family. Ms. Reid worked a variety of jobs, many of which involved long hours.

[47] There is a very strong bond between Mr. Morris and his mother. He loves her very much and she has done everything she can to provide for Mr. Morris.

[48] The Sibblis Report traces Mr. Morris's experiences with the educational system and refers to his interactions with the Children's Aid Society. The report describes the injuries suffered by Mr. Morris when he was stabbed in 2013 and the ongoing medical problems he has suffered. The report sets out Mr. Morris's experiences within the community in which he grew up and how he has come to perceive that community as a threatening and unsafe place. The report also summarizes Mr. Morris's perceptions of how he has been treated by the police and correctional authorities.

[49] In her report, Ms. Sibblis writes:

Under the weight of anti-Black racism, Mr. Morris had little option than to live his life as best he could having been influenced by the streets. His overall social circumstances, while not excusing his behaviour, have undeniably contributed to Mr. Morris being involved with the justice system today.

Mr. Morris has also lived, and continues to live, in constant fear. He fears the police, other community members, friends and foes alike, rivals, unknown dangers, life, death. He fears fellow inmates. He fears for his mother's safety. Mr. Morris fears both freedom and incarceration. Mr. Morris's imagination for what he could become was significantly limited by fear, anxiety, and actual threats; it is not positively fostered as his suffering was not sufficiently tended to.

At this time, it would be appropriate to provide him with the support and treatment he ought to have received long ago. Early intervention might well have changed Mr. Morris's trajectory and it appears as though anti-Black racism was a contributing factor in this omission. Since Mr. Morris shows empathy, and has many redeeming qualities, it is a reasonable expectation that he will respond well to mental health treatment.

[50] The persons contacted by Ms. Sibblis described Mr. Morris as a person with many positive personal characteristics, notably a strong sense of empathy. However, in Ms. Sibblis's opinion, those characteristics have been largely submerged in a lifetime of negative experiences, many of which are tied, in part at least, to institutional or overt racism. According to Ms. Sibblis, the combined impact of those events have left Mr. Morris physically and emotionally damaged, unable to obtain meaningful employment, in constant fear for his physical safety from both people in his community and the police, and without hope for the future.

[51] In preparing her report, Ms. Sibblis interviewed Mr. Morris, his mother, his pastor, and a family friend. She received a supporting letter from a social worker and childhood friend. Ms. Sibblis obtained extensive documentation from various schools and educational programs [...] as well as some [medical records].

THE ARGUMENTS

A. THE RELEVANCE OF EVIDENCE OF ANTI-BLACK RACISM ON SENTENCING

[56] A sentencing judge has a specific and focused task. A sentencing judge must impose a sentence tailored to the individual offender and the specific offence. While evidence relating to the impact of anti-Black racism on an offender will sometimes be an important consideration on sentencing, the trial judge's task is not primarily aimed at holding the criminal justice system accountable for systemic failures. Rather, the sentencing judge must determine a fit sentence governed by the fundamental tenets of criminal responsibility, including free will, and the

purposes, principles and objectives of sentencing laid down in Part XXIII of the *Criminal Code*: [...]

(i) The Statutory Framework

[57] The comprehensive statutory scheme governing sentencing first appeared in the *Criminal Code* in 1996: *An Act to amend the Criminal Code (sentencing) and other Acts in consequence thereof*, S.C. 1995, c. 22. Section 718 identifies the fundamental purpose of sentencing as being:

to protect society and to contribute, along with crime prevention initiatives, to respect for the law and the maintenance of a just, peaceful and safe society by imposing just sanctions....

[58] Section 718 recognizes that “just sanctions” will have one or more of the objectives identified in ss. 718(a)-(f). Those objectives will not necessarily point toward the same sentencing disposition. The individualization of the sentencing process requires sentencing judges to prioritize and blend the different objectives of sentencing so as to properly reflect the seriousness of the offence and the responsibility of the offender. The objectives identified in s. 718 are:

(a) to denounce unlawful conduct and the harm done to victims or to the community that is caused by unlawful conduct;

- (b) to deter the offender and other persons from committing offences;
- (c) to separate offenders from society, where necessary;
- (d) to assist in rehabilitating offenders;
- (e) to provide reparations for harm done to victims or to the community; and
- (f) to promote a sense of responsibility in offenders, and acknowledgment of the harm done to victims or to the community.

[59] The search for a just sanction which reflects a proper blending of the objectives of sentencing is guided by the loadstar of proportionality. This fundamental principle of sentencing is laid down in s. 718.1:

A sentence must be proportionate to the gravity of the offence and the degree of responsibility of the offender.

[60] Additional guiding principles are found in ss. 718.2(b)-(e):

- (b) a sentence should be similar to sentences imposed on similar offenders for similar offences committed in similar circumstances [the parity principle];
- (c) where consecutive sentences are imposed, the combined sentence should not be unduly long or harsh [the totality principle];
- (d) an offender should not be deprived of liberty, if less restrictive sanctions may be appropriate in the circumstances [the restraint principle]; and
- (e) all available sanctions, other than imprisonment, that are reasonable in the circumstances and consistent with the harm done to victims or to the community should be considered for all offenders, with particular attention to the circumstances of Aboriginal offenders [the restraint principle as applied to incarceration].

(ii) The Proportionality Principle

[61] Proportionality is the fundamental and overarching principle of sentencing. The other sentencing principles set out in s. 718.2 must be taken into account and blended in a manner which produces a sentence that is proportionate to the gravity of the offence and the degree of responsibility of the offender. A sentence which does not comply with the proportionality principle is an unfit sentence: *R. v. Ipeelee*, 2012 SCC 13, [2012] 1 S.C.R. 433, at para. 37.

[62] Proportionality measured by reference to both the offence and the offender has been an integral part of sentencing in Canada since long before the enactment of s. 718.1: see *R. v. M. (C.A.)*, [1996] 1 S.C.R. 500, at para. 40. Under the statutory scheme, proportionality is “central”: *R. v. Friesen*, 2020 SCC 9, 391 C.C.C. (3d) 309, at para. 30; see also *Hamilton*, at para. 89.

[...]

[...]

(a) Proportionality: The Gravity of the Offence

[67] An assessment of the gravity or seriousness of the offence is one part of the proportionality analysis. The seriousness of the offence is reflected in the essential elements of the offence; the more blameworthy the required *mens rea*, and the more harmful the prohibited conduct, the more serious the crime. The gravity of the offence is also reflected in the applicable penalty provision. In addition, the specific circumstances surrounding the commission of the offence can make the crime more or less serious. Parliament has identified some of the features which aggravate the seriousness of an offence in s. 718.2(a): see *Hamilton*, at para. 90; *Ipeelee*, at paras. 53-55.

[The Court held that anti-Black racism is not relevant to this assessment since the severity of the offence (in this case, possession of a loaded, concealed firearm in a public place, fleeing the police, and discarding a loaded gun in a public place) is about with the offender's actions, not the offender themselves.]

(b) Proportionality: The Offender's Degree of Responsibility

[87] While we do not agree that evidence of the impact of anti-Black racism on an offender can diminish the seriousness of the offence, or that systemic inequalities diminish the court's authority, or indeed, its obligation to denounce serious criminal conduct, we do accept that evidence of anti-Black racism and its impact on the specific offender can be an important consideration when determining the appropriate sentence.

[88] Sentencing judges have always taken into account an offender's background and life experiences when gauging the offender's moral responsibility

for the crime and when choosing from among available sanctions. [...]

[89] In *Gladue*, at para. 69, and *Ipeelee*, at paras. 75-77, the court accepted that “background and systemic factors” should be taken into account when sentencing all offenders. These factors take on added significance in respect of Indigenous offenders, given their unique history and circumstances: see also *R. v. Anderson*, 2014 SCC 41, [2014] 2 S.C.R. 167 (“*Anderson (SCC)*”), at paras. 21, 23-24; *R. v. F.H.L.*, 2018 ONCA 83, 360 C.C.C. (3d) 189, at paras. 31-32; *R. v. Brown*, 2020 ONCA 657, 152 O.R. (3d) 650, at paras. 50-51.

[90] In *Gladue* and *Ipeelee*, the systemic and background factors relevant to sentencing included the systemic discrimination, both historical and ongoing, suffered by Indigenous persons, especially in the criminal justice system. The experience of Black people in Canada is also marked by discrimination. Black people share with Indigenous peoples many of the same disadvantages flowing from that discrimination. The reports filed on Mr. Morris’s sentencing speak

eloquently to the historical roots of that discrimination and its pernicious ongoing effect on many aspects of the day-to-day lives of Black people in Canada.

[91] There can be no doubt that evidence on sentencing, describing the existence and effect of anti-Black racism in the offender's community and the impact of that racism on the offender's circumstances and life choices is part of the offender's background and circumstances. The evidence is not only admissible, it is, in many cases, essential to the obtaining of an accurate picture of the offender as a person and a part of society.

[...]

[...]

[97] There must, however, be some connection between the overt and systemic racism identified in the community and the circumstances or events that are said to explain or mitigate the criminal conduct in issue. Racism may have impacted on the offender in a way that bears on the offender's moral culpability for the crime, or it may be relevant in some other way to a determination of the appropriate sentence. Absent some connection, mitigation of sentence based simply on the existence of overt or institutional racism in the community becomes a discount based on the offender's colour. Everyone agrees there can be no such discount: see e.g., *F.H.L.*, at paras. 45-49; *R. v. Elvira*, 2018 ONSC 7008, at paras. 21-25; *R. v. Ferguson*, 2018 BCSC 1523, 420 C.R.R. (2d) 22, at paras. 126-29; and *R. v. Biya*, 2018 ONSC 6887, at para. 36, rev'd on other grounds, 2021 ONCA 171.

[...]

[99] The social context evidence may offer an explanation for the commission of the offence which mitigates the offender's personal responsibility and culpability

for the offence. Mr. Morris's strong and ever-present fear of many people around him in his community, including the police, was offered as an explanation for his possession of a loaded gun. The information in both reports supported the inference that Mr. Morris's fears were real, justified and existed, in part, as a result of systemic racism that played a role in shaping his perception of his community, his relationship with others in the community, and his relationship with the police.

[100] It was open to the trial judge to find that the evidence of anti-Black racism was connected to, or played a role in, Mr. Morris's strong fear for his personal safety in the community. That state of mind offered a mitigating explanation for Mr. Morris's possession of the loaded, concealed handgun. Looked at in this way, evidence of anti-Black racism, which played a role in generating the fear that helps explain why Mr. Morris had a loaded gun, is akin, for the purposes of sentencing, to evidence that Mr. Morris had been terrorized by somebody in the community and had armed himself because he genuinely feared that person. In either scenario, the offender offers an explanation for possessing a loaded gun, which, to some extent, ameliorates the offender's moral responsibility for that choice: see *R. v. Boussoulas*, 2015 ONSC 1536, at paras. 6-7, 20, aff'd 2018 ONCA 222, 407 C.R.R. (2d) 44.

[101] It must be stressed, however, that Mr. Morris's genuine fear, regardless of its cause, is only a limited mitigating factor. He still chose to arm himself in public with a concealed, loaded, deadly weapon. As indicated above, Mr. Morris's

reasons for choosing to arm himself do not detract from the seriousness of the crime he committed. Even if his conduct is made somewhat less blameworthy by the explanation offered for possessing the loaded handgun, Mr. Morris's conduct still put members of the community, and police officers engaged in the lawful execution of their duties, at real risk.

(c) Proportionality: Blending the Objectives of Sentencing

[102] Social context evidence can also be relevant on sentencing even if it does not tend to mitigate the offender's moral culpability. As indicated earlier, social context evidence can provide valuable insight, both with respect to the need to deter the offender from future conduct, and the rehabilitative prospects of the offender. Evidence about an offender's background and circumstances allows the sentencing judge to more accurately assess how sometimes competing objectives of sentencing, such as rehabilitation and denunciation, can best be blended to produce a sentence that accords with the proportionality principle and serves the fundamental purpose of sentencing articulated in s. 718.

[103] For example, evidence that an offender has had frequent and confrontational contact with the police may mean one thing in one community, but quite another in a community in which the influences of anti-Black racism have shaped a confrontational and adversarial relationship between the police and members of the community, especially young Black men. By understanding the

social milieu in which the offender interacted with the police, the sentencing judge is better able to fashion a sentence that, to the extent possible, realistically addresses the needs and potential of the offender, as well as the seriousness of the offence.

[104] Mr. Morris's educational and employment history provides a further example of how social context evidence can assist in fashioning a fit sentence. Considered without the social context evidence, Mr. Morris's educational and employment achievements are meagre and his future prospects seem bleak. Without any context, a sentencing judge could well conclude Mr. Morris had little interest in either education or employment, and consequently his rehabilitative prospects were dim. However, when Mr. Morris's educational and employment background is considered in the context of the information provided by the Sibblis Report, a sentencing judge could determine that Mr. Morris's trajectory, as it relates to education and employment, is more reflective of the institutional biases and systemic inadequacies faced by Mr. Morris than any lack of potential or interest on Mr. Morris's part. By placing Mr. Morris's educational and employment history in the proper social context, a sentencing judge is better able to decide how those parts of Mr. Morris's background might be addressed in a positive way that benefits Mr. Morris and ultimately the community.

[105] A proper understanding of how anti-Black racism has impacted on various aspects of an offender's life will assist the sentencing judge in fashioning a

sentence which includes terms that enhance the offender's rehabilitation by addressing, in a direct and positive way, the negative impact of systemic racism. The counselling term in the probation order made by the trial judge in this case had that potential. The detailed terms of the conditional sentence imposed in *Anderson (NSCA)*, at paras. 72-73, also serve that purpose.

[106] In summary, social context evidence, which helps explain how the offender came to commit the offence, or which allows for a more informed and accurate assessment of the offender's background, character and potential when choosing from among available sanctions, is relevant and admissible on sentencing. Acknowledging the reality of anti-Black racism and its impact on offenders like Mr. Morris during the sentencing process enhances the legitimacy of the criminal justice system in the eyes of the community and, in particular, those in the community who have good reason to see the criminal justice system as racist and unjust. A sentencing process which frankly acknowledges and addresses the realities of the offender's life takes one important step toward the goal of equal justice for all.

[The court went on to consider other sentencing principles, apart from proportionality, the details of which are mostly beyond the scope of our course. Notably, the court considered whether the Gladue sentencing methodology should be applied to Black offenders.]

[113] Although the restraint principle applies when sentencing all offenders, s. 718.2(e) applies with “particular attention to the circumstances of Aboriginal offenders.” Not surprisingly, given this language, the courts have interpreted s. 718.2(e) as signalling Parliament’s direction that a different approach should be taken when applying the restraint principle to the sentencing of Indigenous offenders. That approach was first laid down in *Gladue* and further developed in *Ipeelee*. None of the parties take exception to the methodology developed in those cases, as applied to Indigenous offenders. Some of the interveners, however, submit this court should extend that approach to the sentencing of Black offenders.

[114] Indigenous offenders were singled out in s. 718.2(e) for two reasons. First, the problems associated with over-incarceration exist with devastating force in Indigenous communities: *Gladue*, at paras. 58-65; *Ipeelee*, at paras. 56-58. Second, for many Indigenous offenders and their communities, some of the principles and objectives underlying sentencing in Part XXIII do not represent Indigenous values or reflect the unique experiences and perspectives held by many Indigenous communities. In short, what amounts to a “just” sentence from a non-Aboriginal vantage point will not necessarily be seen as a “just” sentence from the very different historical and cultural vantage point of the Indigenous offender and community: *Gladue*, at paras. 70-74, 77.

[...]

[117] Counsel for some of the interveners argue that the circumstances of Indigenous offenders, which justify a different approach to sentencing, apply with equal force to Black offenders. They point out that over-incarceration of Black offenders is a well-documented phenomenon in the Canadian justice system. Counsel submit that the negative impact of long-term and widespread discrimination against Indigenous people is not unlike the impact of anti-Black racism on the Black community. Both communities share educational, economic, and social disadvantages. Perhaps most significantly, they share a very negative experience with and a profound distrust of the criminal justice system.

[118] We do not agree that this court should equate Indigenous offenders and Black offenders for the purposes of s. 718.2(e). We come to that conclusion for two reasons.

[119] Sentencing policy falls to be set, first and foremost, by Parliament. Parliament chose to specifically single out one group – Aboriginal offenders – in the context of the operation of the restraint principle in sentencing, especially as applied to imprisonment. [...]

[121] The language of s. 718.2(e) could not be clearer. Aboriginal offenders have been singled out for the purposes of the application of the restraint principle described in s. 718.2(e). It does not fall to the court to effectively amend that language to include other identifiable groups.

[122] In any event, the rationale offered in *Gladue* and *Ipeelee* for applying the restraint principle differently in respect of Indigenous offenders does not apply to Black offenders. Although there can be no doubt that the impact of anti-Black racism on a specific offender may mitigate that offender's responsibility for the crime, just as with Indigenous offenders, there is no basis to conclude that Black offenders, or Black communities, share a fundamentally different view of justice,

or what constitutes a “just” sentence in any given situation. The Indigenous offender’s culture and historical relationship with non-Indigenous Canada is truly unique. That uniqueness explains the very specific and exclusive reference to “Aboriginal offenders” in s. 718.2(e).

[123] Although we would not equate Black offenders with Indigenous offenders, for the purposes of s. 718.2(e), the *Gladue/Ipeelee* jurisprudence can inform the sentencing of Black offenders in several respects: see *Borde*, at para. 30. Just as with the discrimination suffered by Indigenous offenders, courts should take judicial notice of the existence of anti-Black racism in Canada and its potential impact on individual offenders. Courts should admit evidence on sentencing directed at the existence of anti-Black racism in the offender’s community, and the impact of that racism on the offender’s background and circumstances. Similarly, in considering the restraint principle, courts should bear in mind well-established over-incarceration of Black offenders, particularly young male offenders. Finally, as with Indigenous offenders, the discrimination suffered by Black offenders and its effect on their background, character, and circumstances may, in a given case, play a role in fixing the offender’s moral responsibility for the crime, and/or blending the various objectives of sentencing to arrive at an appropriate sanction in the circumstances.

[...]

[...]

[147] Reports like the Sibblis Report are not commonly used in Ontario. We agree with the Nova Scotia Court of Appeal in *Anderson (NSCA)* that the reports can be of great assistance to a sentencing judge. Hopefully, their preparation can be adequately funded and they will become a common feature of sentencing in Ontario in appropriate cases. We are confident that with more experience in preparing these reports, and added guidance from the courts, authors of these reports will appreciate the need to present an objective assessment, while avoiding appearing to take on the role of advocate for the offender.

[The court went on to hold that the trial judge made some errors in his sentencing decision, and it increased the sentence to two years less a day, plus 18 months probation. (The court wrote, at para. 182: "Probation provided for an extended period of supervision and access to culturally-sensitive counselling. Both had the potential to further Mr. Morris's rehabilitation and provide added long-term safety for the community" It noted that, under the Criminal Code, probation can only be imposed if the period of incarceration is not more than two years, hence the court's decision to impose a sentence just under two years. The parties all agreed that the sentence would be stayed, meaning that Mr. Morris would not have to serve any additional time. For extenuating reasons, years had passed between when he served his original sentence and when the Court of Appeal decided this appeal.]